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No. 00-9280

In The

Supreme Court of the United States

WILLIAM ARTHUR KELLY,

Petitioner,

v.

STATE OF SOUTH CAROLINA,

Respondent.

On Writ Of Certiorari To The Supreme Court Of South Carolina

BRIEF FOR PETITIONER

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QUESTION PRESENTED

Whether the South Carolina courts' refusal to inform petitioner's sentencing jury that he would never be eligible for parole if the jury sentenced him to life imprisonment rather than to death violated *Simmons v. South Carolina,* 512 U.S. 154 (1994).

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The opinion of the South Carolina Supreme Court affirming petitioner's conviction and death sentence is reported as *State v. Kelly*, 343 S.C. 350, 540 S.E.2d 851 (2001), and is reprinted in the Joint Appendix at pages 313-343.

JURISDICTION

The judgment of the South Carolina Supreme Court was entered on January 8, 2001. The petition for writ of certiorari was filed on April 5, 2001, and granted on June 25, 2001. This Court's jurisdiction is invoked pursuant to 28 U.S.C. § 1257(a), petitioner having asserted below and asserting herein deprivation of rights secured by the United States Constitution.

CONSTITUTIONAL AND STATUTORY PROVISIONS INVOLVED

1. This case involves the Fourteenth Amendment to the Constitution of the United States, which provides in pertinent part, "[N]or shall any state deprive any person of life . . . without due process of law. . . . "

2. It also involves S.C. Code Ann. §§ 16-3-10 *et seq.* (2000 Cum. Supp.), which code sections are reprinted in the Appendix to this brief at pages A-1 to A-5.

STATEMENT OF FACTS

On January 1, 1996, a South Carolina statutory amendment took effect that abolished parole or other forms of early release for all prisoners convicted of murder. No. 83, § 10, 1995 S.C. Acts 557, codified as S.C. Code § 16-3-20 (Supp. 2000), App. 1-2. In capital cases, the same legislation limited the sentencing jury's options to death and life imprisonment without possibility of parole, so long as the jury determined the defendant to be death-eligible by finding the existence of one or more statutory aggravating circumstances. *Id.*[1]

Just five days after the no-parole amendment took effect, 17-year-old William Arthur Kelly killed a former co-worker at a Kentucky Fried Chicken restaurant during the course of a robbery. He confessed to the crime, and was duly indicted in a South Carolina state court for murder, kidnaping, armed robbery, and possession of a knife during the commission of a violent crime. The facts of the offense involve the gruesome stabbing of a pregnant victim, and were summarized by the South Carolina Supreme Court as follows:

> On the night of January 5, 1996, police officer Stephen Clare drove by the Batesburg KFC and noticed in the parking lot a car running with the driver's door open. Knowing that it was after the restaurant's usual closing time and recognizing the car as belonging to Shirley Shealy, the manager of the KFC, Officer Clare

[1] This Court recently considered these amendments to the South Carolina capital sentencing scheme in *Shafer v. South Carolina*, 532 U.S. ___, 121 S. Ct. 1263 (2001).

> pulled in to investigate. Officer Clare discovered Shealy's body in the KFC; her hands were taped behind her back, and money was strewn all over the floor and stuck to her bloody body.
>
> Kelly, a former KFC employee, had visited the KFC earlier that day. After interviewing KFC employees, Batesburg-Leesville Chief of Police William Oswald attempted to locate Kelly. On January 8, 1996, Kelly's mother called Chief Oswald and told him that Kelly was in Lowell, Massachusetts. Lowell police detectives found Kelly at his sister's residence in Lowell. Kelly, who was seventeen years old at the time, was advised of his *Miranda* rights and made a statement to the detectives admitting that he killed Shealy and stole money from the KFC. Kelly had in his possession money stained with Shealy's blood. In addition, the Lowell detectives retrieved Kelly's bloodstained clothing from his car.

At trial, defense counsel virtually conceded petitioner's guilt from the outset, informing the jury in his opening statement that the primary issue for the jury's consideration would be whether to impose the death penalty. R. 1255-56. The state did offer a custodial confession in which petitioner made the highly improbable claim that the victim had provoked the killing by making sexual advances, JA 19-25; although the trial judge found that assertion sufficient to warrant a jury instruction on the lesser-included offense of voluntary manslaughter, neither petitioner nor his counsel pursued this claim at trial. For its part, the state's guilt phase presentation emphasized the extreme violence of the crime ("He cut her on the side of the neck. He cut her from the top of her

head down to her back. . . . He cut her in her neck, cut under her breasts, on the side and just ripped her . . . everywhere imaginable. That's what he did."), and promised to prove that petitioner "butchered her like an animal . . . for what he values more than common decency . . . more than human life, the lust for money." JA 10, 15-16. Following through on this promise, the state presented detailed testimony from a crime-scene technician and a pathologist describing the gory aftermath of the many knife wounds that petitioner admitted to having inflicted. JA 27-33. In his closing argument, the prosecutor stressed the premeditated nature of the murder, and reminded the jury of its brutality: "William Arthur Kelly . . . repeatedly, brutally stabbed her, cut her, slit her throat, put a hatchet-like wound in her head, cut her up like a piece of meat and left her there to die." JA 60. In response, defense counsel effectively conceded petitioner's guilt of murder, and admitted that "nobody would believe all of [his] statement." R. 1612. The jury deliberated only 65 minutes before convicting petitioner of all four counts in the indictment. R. 1638-40.

The prosecutor began the capital sentencing hearing that followed by describing petitioner as "a cold-blooded conniving, calculated murderer," and expressing the hope that the members of the jury would "never in your lives have to experience what you are experiencing right now. Being some thirty feet away from such a person. Murderer." JA 64. After informing the jury that "we are going to be vigorously seeking the death penalty and folks, we expect the death penalty," JA 68, the prosecutor re-offered in aggravation of punishment all of the evidence previously adduced at the guilt-or-innocence phase of the

trial. R. 1661. Next, the prosecution called a series of correctional officers and one of petitioner's former cell-mates to establish that petitioner was a dangerous and remorseless prisoner who posed a high risk of escape. By these witnesses' testimony, the state sought to prove the following facts:

- while awaiting trial on the present charges, petitioner angrily refused an order to go into his cell, and backup correctional officers had to be summoned to force him back into his cell, JA 73;
- petitioner was charged with attempting to escape after it was learned that the mortar around a cinder block in his cell had been scraped away, JA 81-83, 93-102, 105-110;
- on at least five occasions, petitioner had talked with a former cell-mate about escaping from jail, JA 128;
- petitioner had on more than one occasion made a "shank," a sharp knife-like tool, which is commonly used as a weapon in jail, JA 129-130, JA 139-141;
- petitioner had devised a plan to take a correctional officer hostage with a shank, and had gone so far as to call the correctional officer to his cell while he held a shank behind his back, JA 129-132, 146-147;
- petitioner behaved in a confrontational and aggressive manner around other inmates, JA 147, and
- petitioner joked and bragged to other jail inmates about the murder, asked to be nicknamed "KFC," and drew a grisly cartoon about the crime. JA 147-149.

Following this testimony, the state offered additional photographs, bloodstained clothing and medical testimony concerning the extremely violent and gruesome manner in which petitioner killed the victim. JA 151-178.

Responding to a defense objection to the photos and clothing, the prosecutor said that he was offering them both to establish the statutory aggravating circumstance of physical torture, and to show "the character and characteristics of the defendant." JA 151-55.[2]

After completing its own presentation, the prosecution elicited the following additional facts through cross-examination of a defense psychologist:

- petitioner told a mental health counselor that he "obsesses" about killing people who anger him, and about how he could do it without being caught, JA 195;
- petitioner was part of a prison gang, JA 206-208, and
- petitioner tortured and killed small animals while he was growing up. JA 218-219.

Cross-examining a former state prison official called by the defense, the prosecutor also highlighted the witness's passing reference to loss of "good-time" as a means of controlling prisoners, despite petitioner's objection that the state was trying to mislead the jury by falsely suggesting that a life sentence could be shortened by good-time credit. JA 229-237.

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[2] The state alleged a total of five statutory aggravating circumstances – kidnaping, burglary, armed robbery, larceny with use of a deadly weapon, and physical torture. South Carolina's capital sentencing scheme, which closely resembles the Georgia system upheld in *Gregg v. Georgia*, 428 U.S. 153 (1976), also allows the jury to consider a wide array of nonstatutory aggravating factors (such as future dangerousness) as reasons to impose the death penalty once a finding of one or more statutory factors has rendered the defendant death-eligible. *Simmons v. South Carolina*, 512 U.S. 154, 162 (1994).

During the charge conference just before closing arguments, JA 243-254, petitioner's counsel requested, on the authority of *Simmons v. South Carolina*, 512 U.S. 154 (1994), that the judge read to the jury the following portion of S.C. Code Ann. § 16-3-20(A):

> "[L]ife imprisonment" means imprisonment until the death of the offender. No person sentenced to life imprisonment is eligible for parole, community supervision, or any early release program, nor is the person eligible to receive any work credits, education credits, good conduct credits, or any other credits that would reduce the mandatory life imprisonment required by law.

Defendant's Request to Charge Number 1, JA 311, 322, 540 S.E.2d at 856. At this point, the trial judge became aware, apparently for the first time, that petitioner's crime occurred after the effective date of South Carolina's abolition of parole for convicted murderers, and that the jury's life imprisonment option therefore meant life without possibility of parole. JA 243-244. However, the prosecutor responded that petitioner's parole-ineligibility was "immaterial," asserting that petitioner was not entitled to a *Simmons* instruction on parole ineligibility because the prosecutor was "not going to argue future dangerous[ness]" in his penalty phase summation. JA 245. Defense counsel protested that "the state has already raised future dangerousness . . . in its case in chief" by presenting evidence of petitioner's escape attempts, his possession of a shank in jail, and his plotting to take a female jail guard hostage. She continued,

> The clear inference that they seek for the jury to derive from this evidence is that he has a violent

> character. He is going to be dangerous in the future. That is a part of his character. . . . They also raise those inferences through their cross-examination of our expert witnesses as to those matters contained in the jail records. Future dangerousness has already been put at issue by the state itself in its case in chief.

JA 245-246. The prosecutor responded,

> I can't understand how past conduct somehow throws it into the future. We are talking about his past background, conduct, character. I am not going to talk about this defendant posing a future danger to the public and to society. . . . I didn't put up any psychiatrist or psychologist that said this man will kill again in the future.

JA 246. After considering the matter during a recess, the trial judge agreed with the state, ruling as follows:

> The argument that [defense counsel] make concerning the defendant's request to charge number one . . . you made the argument that the state has made future dangerousness an issue in this matter. I don't believe that the issues that have been presented by the state insofar as the testimony from the prison guards et cetera are such that causes this court to determine that future dangerousness has been made an issue. I think those are issues that go to the defendant's character and characteristics. As a result, I'm going to deny defendant's request for charge number one.

JA 249.

Defense counsel next requested, based on the court's finding that the state had not made an issue of petitioner's future dangerousness, that the court so instruct

the sentencing jury. Specifically, counsel requested an instruction that included the following:

> I have instructed you on the "aggravating" factors that you may consider as reasons to impose the death penalty. I tell you now that you may not consider, as a reason to impose the death penalty, any possibility that the defendant may be dangerous in the future unless he is executed. In this case, there is no evidence that the defendant will be dangerous if he does not receive the death penalty but is instead sentenced to life imprisonment. The state does not contend that he will be dangerous in the future. Therefore, any consideration about future dangerousness is not a legal factor for you to consider as a reason to sentence the defendant to death. This subject may not be considered by you at all in deciding whether the death penalty should be imposed, and should not even be mentioned by you during your deliberations as to the sentence to be imposed.

Defendant's Proposed Instruction No. 2, JA 312, 329-330, 540 S.E.2d at 859. The state opposed this instruction, and despite defense counsel's urging that the jury would infer petitioner's future dangerousness "from the evidence that the state itself put before the jury" absent such an instruction, the trial judge refused to give it. JA 251.

The prosecutor then delivered his summation. Notwithstanding his assurance that the state would not "argue" petitioner's future dangerousness, he proceeded to characterize petitioner as more frightening than a

serial killer, JA 260, as a butcher, and as "Billy the Kid."[3] JA 267-268. In an effort to minimize the significance of the fact that petitioner was only 17 and had no prior criminal record, the prosecutor argued, "You know something, a person that commits an uncharacteristic and an unpredictable crime is more frightening than a serial killer, more frightening than a career criminal." JA 260. The prosecutor informed the jury that petitioner's murderousness was an innate and immutable fact: "He was going to kill. It was just a matter of when. Whether he was 17, 27, or 37." JA 261. Later in his closing, the prosecutor repeatedly referred to petitioner as "Bloody Billy, the butcher of Batesburg." JA 267. He went on to explain what made petitioner so dangerous: "What did his own witness say[?] He doesn't have any mental illness. He's intelligent. He's not retarded. He's quick-witted. Doesn't that make somebody a little more dangerous . . . ". JA 269. Petitioner's counsel promptly objected, telling the judge that the prosecutor had "stipulated dangerousness is not an issue," whereupon the prosecutor changed course to suggest that the dangerousness he had just referred to was " . . . for this lady, this crime on January 5th, doesn't that make him more unpredictable for Shirley Shealy. When you let your guard down and they stab you in the back. That's what

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[3] *See* Robert M. Utley, *Billy the Kid: A Short and Violent Life* (1989). Henry Antrim, also known as Billy the Kid, was a notorious Western outlaw and gang leader known for his boyish appearance and extreme ruthlessness. He killed his first victim when he was seventeen, *id.* at 12-14, and eventually murdered at least nine people before being gunned down himself at the age of twenty-one. *Id.* at 203-04.

we have here." JA 269. The prosecutor reminded the jury of petitioner's attempted escapes, JA 270-271, and his plan to take a correctional officer hostage, JA 271-272, and invited the jury to conclude from this evidence that "shanks will be shanks. And murderers will be murderers. And he is the cold-blooded one right over there." JA 272. He reminded the jury that petitioner had bragged and joked about his crimes while in jail. JA 275. Finally, he again told the jury "that we are seeking the death penalty and we expect the death penalty," and concluded, "Folks, if you don't give him the death penalty, anything less will be a final stab to the memory of Shirley and Sidney Bruce." JA 276.[4]

In keeping with his pre-argument ruling, the trial judge gave the jury no instructions concerning the unavailability of parole release for murderers sentenced to life imprisonment, stating only that "the terms 'life imprisonment' and 'death sentence' are to be understood in this ordinary and plain meaning." JA 289.[5] While

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[4] Sidney was the name that the victim's family gave to her dead fetus, after it was removed from her womb at autopsy. The unborn child was placed in its mother's arms in her casket for burial, and the state's case in aggravation of punishment included a description by the victim's sister of the effect of viewing the tiny infant's corpse in its dead mother's arms. R. 1858.

[5] Despite this Court's determination in *Simmons* that such a "plain meaning" instruction does not protect capital defendants against jurors' prejudicial misconceptions concerning parole, 512 U.S. at 169-170 (plurality opinion), 177-78 (O'Connor, J., concurring), the South Carolina Supreme Court continues to require that the instruction be given. *Compare State v. Southerland*, 447 S.E.2d 862 (S.C. 1994) (*Simmons* charge not

declining to further define life imprisonment, the trial judge did advise the jury that "the death penalty . . . in this state is by electrocution or lethal injection." JA 289.

Following the sentencing instructions, defense counsel renewed her objection to the trial court's failure to charge the jury regarding petitioner's ineligibility for parole, or in the alternative, to charge the jury that petitioner's future dangerousness was not an issue in the case. JA 304. The judge again refused both requests. After deliberating for 43 minutes, the sentencing jury found all five statutory aggravating circumstances alleged by the state, and returned a binding recommendation of death. JA 305-307.

On appeal to the South Carolina Supreme Court, petitioner renewed his argument that *Simmons v. South Carolina* entitled him to advise the jury of his ineligibility for parole had he been sentenced to life imprisonment. *State v. Kelly*, Brief of Appellant at 2-13; Reply Brief at 3-5. In response, the state relied in part on a since-invalidated rationale for avoiding the effect of *Simmons*: namely, that *Simmons* had been rendered inapplicable to South Carolina's capital sentencing scheme by the 1995 statutory amendments. Brief of Respondent at 19-27. The state also argued that the prosecutor had not raised future dangerousness outside of prison as an issue, and that petitioner was therefore not entitled to a *Simmons* instruction. Brief of Respondent at 27-39.

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required because prosecutor agreed not to "argue" future dangerousness) *with Southerland v. State*, 524 S.E.2d 833 (S.C. 1999) (appellate counsel ineffective for failing to raise denial of "plain meaning" instruction).

With one justice dissenting, the South Carolina Supreme Court accepted both of the state's arguments, holding that the record did not satisfy the "future dangerousness" requirement of *Simmons*, *State v. Kelly*, 540 S.E.2d 851, 857 (S.C. 2001), JA 324-326, and also that the 1995 amendments placed South Carolina's sentencing scheme outside the ambit of *Simmons* in any event. *Id.*, at 857-58, JA 326-329. With regard to future dangerousness, the state court majority first opined that the state's evidence regarding petitioner's attempted escapes, his frequent talk about escaping, and his possession of a shank "simply is not the type of future dangerousness evidence contemplated by *Simmons*." *Id.* at 857, JA 324. While acknowledging that "evidence of Kelly's future danger to others within prison . . . was clearly presented by the State," *id.* at 859, JA 331, the state supreme court held that this evidence *only* placed in issue his ability to adapt to prison life, and did not invite the jury to weigh "what is considered 'future dangerousness' under *Simmons*, i.e. a future danger to society." *Id.*, JA 331.

To petitioner's argument that the prosecutor had also raised the issue of petitioner's dangerousness directly in his closing argument, the state court responded that "the State consciously avoided any implication of future dangerousness," and did not explicitly ask the jury to impose the death penalty based on petitioner's future danger to society. *Id.* at 857, JA 326. For these reasons, the state court concluded that future dangerousness "was neither a logical inference from the evidence nor was it injected into the case through the State's closing argument." *Id.*, JA 326.

Petitioner also raised on appeal the trial court's refusal to instruct the jury that petitioner's future dangerousness was not an appropriate sentencing consideration. Brief of Petitioner at 14-16. The state argued that such an instruction would have been improper in this case, because the prosecutor "did not stipulate to the factual issue that future dangerousness was not in issue; instead, he merely agreed not to argue future dangerousness in closing." Brief of Respondent at 42. The South Carolina Supreme Court agreed with the state, holding that the proposed instruction would have improperly precluded the jury from considering the evidence presented by the prosecution to show that petitioner posed a danger within a prison setting. 540 S.E.2d at 859, JA 331.

SUMMARY OF ARGUMENT

In *Shafer v. South Carolina*, 121 S. Ct. 1263 (2001), this Court invalidated one of the two bases of the South Carolina Supreme Court's affirmance of petitioner's sentence – namely, that post-*Simmons* changes in South Carolina's capital sentencing procedures had wholly eliminated the state's obligation to inform sentencing juries of the nonexistence of parole. The constitutionality of petitioner's sentence thus rests on the validity of the state court's remaining justification for denying his request for a *Simmons* instruction, which was that the prosecution never placed his future dangerousness at issue. This rationale is belied by the record.

The state prepared the way for what would prove to be an onslaught of dangerousness rhetoric by placing

before the jury evidence of petitioner's pretrial escape attempts, his possession of weapons in jail, his plan to take a correctional officer hostage, his expressed lack of remorse, his obsessive homicidal ideation, and his history of torturing small animals. In addition, the trial court permitted the prosecution to introduce, as evidence of petitioner's "character," graphic depictions of the extreme brutality with which he murdered the victim. Then, in his sentencing phase jury argument, the prosecutor squarely put before the jury the issue of petitioner's future dangerousness. The prosecutor implied that petitioner was a second Billy the Kid, and referred to him as "Bloody Billy" and as "the Butcher of Batesburg." He told the jury that "murderers will be murderers," and called petitioner "cold-blooded" and "more frightening than a serial killer, more frightening than a career criminal." He even asserted – while denying that he was making an issue of petitioner's dangerousness – that petitioner's lack of any mental disability rendered him "more dangerous" to those around him.

The state supreme court did acknowledge that the evidence relating to petitioner's misconduct in jail tended to prove his future dangerousness, but insisted that in-prison dangerousness does not implicate the rule of *Simmons* because such evidence is not rebutted by proof of parole ineligibility. This reasoning overlooks that violent behavior in prison is highly predictive of violent behavior in the general society, should the defendant ever be released.

Nor is there any validity to the South Carolina courts' distinction between evidence of petitioner's "character" and evidence of his future dangerousness.

Because the state's depiction of petitioner's "character" was that of a remorseless, unpredictable and incorrigible killer, the message the state sought to convey to the jury was that in this case, "dangerousness" and "character" amounted to the same thing. Accordingly, under *Simmons*, petitioner should have been allowed to respond to the state's case for death by showing that he would never be eligible for parole if sentenced to life imprisonment.

South Carolina's resistance to this Court's decision in *Simmons* should end here. The Court should disapprove South Carolina's myopic view of *Simmons'* dangerousness requirement, and should make clear that that requirement is satisfied whenever the prosecution introduces evidence from which a capital sentencing jury could reasonably infer that the defendant would be dangerous if released.

ARGUMENT

1. The South Carolina Supreme Court's holding that *Simmons* does not apply to the statutory scheme governing petitioner's sentencing hearing has been overruled by this Court's intervening decision in *Shafer v. South Carolina*, 532 U.S. ___, 121 S. Ct. 1263 (2001).

Petitioner's case is yet another in a series of decisions which recently led this Court to observe that "South Carolina has consistently refused to inform the jury of a capital defendant's parole eligibility status." *Shafer v. South Carolina*, 121 S. Ct. 1263, 1271 (2001). This time, as related above, the state court's refusal rests on alternative holdings. First, the state supreme court held that while

the state's evidence and jury argument "clearly" placed in issue petitioner's future dangerousness, they did so in a way that failed to trigger the due process rule of *Simmons v. South Carolina*, 512 U.S. 154 (1994). And second, the state court reiterated its holding, previously announced in *State v. Starnes*, 531 S.E.2d 907 (S.C. 2000), and *State v. Shafer*, 531 S.E.2d 524 (S.C. 2000), that *Simmons* is in any event inapplicable to the current South Carolina sentencing scheme.

The second of these holdings has now been expressly rejected by *Shafer v. South Carolina, supra*. In *Shafer*, this Court held that the possibility of a less-than-life sentence in cases where the prosecution fails to establish the defendant's death-eligibility does not remove South Carolina's sentencing scheme from the ambit of *Simmons*. The state court's decision to the contrary cannot stand in light of *Shafer*.

2. Because the prosecution presented both evidence and argument calculated to persuade the jury that petitioner would be dangerous unless executed, *Simmons* entitled him to an instruction that he would be ineligible for parole if sentenced to life imprisonment.

The South Carolina Supreme Court also held that the state did not place petitioner's future dangerousness in issue as required by *Simmons*, opining that dangerousness, as that concept is employed in *Simmons*, was "neither a logical inference from the evidence nor was it injected into the case through the State's closing argument." *State v. Kelly, supra*, 540 S.E.2d at 857, JA 326. This

holding was incorrect on both points: the issue of petitioner's future dangerousness was *both* a logical inference from the state's evidence *and* was hammered home in closing argument. The state supreme court majority's holding to the contrary reflects a recalcitrant refusal to implement this Court's decision in *Simmons*, and should be reversed.

A. The prosecutor's argument, standing alone, plainly raised the issue of future dangerousness as a sentencing issue.

The South Carolina Supreme Court notwithstanding, the record of this case is replete with generalized claims of future dangerousness. Most egregious was the prosecutor's explicit assertion during closing argument that petitioner was all the more dangerous because his lack of mental disability rendered his crimes unpredictable. In making this argument ("Doesn't that make somebody a little more dangerous[?]"), the prosecutor appears to have momentarily forgotten the "no-dangerousness" charade by which he was attempting to circumvent this Court's decision in *Simmons*: his subsequent attempt to confine this general allegation of future dangerousness to the already-murdered victim seems a hastily-improvised (and somewhat illogical) response to defense counsel's *Simmons*-related objection.

Nor was this the only explicit reference to generalized future dangerousness in the prosecutor's somewhat inflammatory summation. Throughout his closing argument, the prosecutor portrayed petitioner as an incorrigible killer: he evoked the memory of Billy the Kid,

tagged petitioner as "Bloody Billy" and as "the Butcher of Batesburg," provided the jury with future-dangerousness aphorisms such as "murderers will be murderers," and expressed the hope that the jurors would never again be so close to a murderer as they were at that moment. He called petitioner "cold-blooded" and "more frightening than a serial killer, more frightening than a career criminal." And this cascade of dangerousness rhetoric was fed not only by the state's evidence regarding petitioner's extremely violent crime and his misconduct in jail, but also by prosecution cross-examination about petitioner's obsessive thoughts of killing people, and his history of torturing and killing small animals.

Even if the prosecutor did modulate parts of his summation as a tactic intended to avert a truthful *Simmons* instruction, his argument raised petitioner's alleged future dangerousness much more explicitly than anything in *Simmons* itself. In that case, the sum total of the prosecutor's argument on future dangerousness was as follows:

> The question for the jury, the prosecution argued, was "what to do with [petitioner] now that he is in our midst." The prosecution further urged that a verdict for death would be "a response of society to someone who is a threat. Your verdict will be an act of self-defense."

512 U.S. at 157, 177. These veiled references to Simmons' dangerousness were just that: *veiled* references. Indeed, two dissenting Justices detected nothing at all in the prosecutor's argument that even referred to Simmons' future behavior: to the dissenters, the "in-our-midst" passage referred only to Simmons' alleged attempt to blame

his crimes on his childhood environment, while the "self-defense" reference was merely an appeal for a calm and dispassionate societal response to Simmons' brutal crimes, rather than a sentence based on anger or emotion. 512 U.S. at 181-82 (Scalia, J., dissenting). If the prosecutor's argument in *Simmons* sufficed to place Simmons' dangerousness in issue, so did the much more explicit cross-examination and argument here.

B. There is no basis in law or logic for South Carolina's insistence that a convicted murderer's future dangerousness in prison carries no inference of future dangerousness outside of prison.

The state court did acknowledge that the prosecutor "clearly presented" both evidence and argument to the effect that petitioner would pose a violent escape risk *while incarcerated*. 540 S.E.2d at 855-57, JA 321-326. According to the South Carolina Supreme Court, however, this explicit claim of future dangerousness did not implicate the *Simmons* right of rebuttal because the fact of petitioner's parole ineligibility did not directly rebut the state's implication that he would attempt to secrete weapons, take hostages and escape if he was not executed. *Id.* at 857, JA 325.

Of course, a dangerous prisoner can fashion weapons, take hostages and try to escape whether or not he is eligible for parole. What the state court overlooked, however, is that evidence of dangerousness in prison is *also* powerful evidence of dangerousness *outside* of

prison, where the defendant will have much more freedom to indulge whatever violent impulses he may harbor. Evidence that for this particular defendant, not even prison was effective in curbing his violent tendencies created a particularly strong inference of generalized future dangerousness.[6] So while an accurate instruction on petitioner's parole ineligibility would not have answered the state's claim that he would be dangerous while serving a life sentence in prison, it would have allayed the jury's inevitable concern that petitioner would prove all the more violent should he ever be paroled back into society.

One facet of the state's case – petitioner's alleged hostage-taking plan – was especially likely to have reminded the jury of the obvious relationship between in-prison and out-of-prison dangerousness. The state's claim that petitioner tried to lure a slightly-built female jail officer into his cell while hiding a homemade knife behind his back must have struck the jury as similar to the facts of the Shealy murder itself. If petitioner was inclined to repeat such crimes even while confined in the highly restrictive setting of a county jail, the jury surely reasoned, he would be particularly likely to do so if and when he was released from prison.

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[6] While a jury would hardly require scientific confirmation of this self-evident proposition, current research on violent recidivism does indicate that a history of violent behavior in prison increases the likelihood of violent behavior if and when the offender is released. Vernon L. Quinsey, *et al.*, *Violent Offenders: Appraising and Managing Risk* 161 (1998).

In this connection, the South Carolina Supreme Court may have misunderstood the Court's observation in *Simmons* concerning the relationship between accurate instructions on parole ineligibility and dangerousness in prison. As the *Simmons* plurality noted,

> the fact that a defendant is parole ineligible does not prevent the State from arguing that the defendant poses a future danger. The State is free to argue that the defendant will pose a danger to others in prison and that executing him is the only means of eliminating the threat to the safety of other inmates or prison staff. But the State may not mislead the jury by concealing accurate information about the defendant's parole ineligibility.

512 U.S. at 165. Likewise, Justice O'Connor observed that whenever due process entitles a capital defendant to inform the jury of his parole ineligibility, "the prosecution is free to argue that the defendant would be dangerous in prison." *Id.* at 177. These passages make clear that proof of a defendant's likely misconduct in prison is a permissible basis for argument by the prosecutor that only a death sentence can protect against the defendant's foreseeable future depredations *whether or not he is legally ineligible for parole*; but such proof is not, as the prosecutor and the South Carolina Supreme Court seemed to think, a basis for concealing from the jury the crucial information that, in fact, the defendant *is* ineligible for parole.[7]

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[7] The one federal case cited by the South Carolina Supreme Court on this point appears to reflect a similar misreading of *Simmons*. In *Allridge v. Scott*, 41 F.3d 213, 223 (5th Cir. 1994), the court suggested in *dictum* that "when the state argues that the defendant poses a future danger to everybody, fellow inmates included, then *Simmons* is inapplicable because whether the defendant is eligible for parole is irrelevant." This suggestion was not necessary to the judgment, because the defendant in *Allridge* was actually eligible for parole under state law. Outside of South Carolina, no court appears to have upheld the denial of a *Simmons* instruction solely because the state's proof of the defendant's dangerousness was restricted to the controlled and highly-structured setting of prison.

C. The applicability of *Simmons* should not depend on prosecutors' creativity in manipulating the elusive distinction between evidence of character and evidence of future dangerousness.

In denying petitioner's request for a *Simmons* instruction, the trial judge ruled that the state's evidence of future dangerousness actually went to petitioner's "character and characteristics." This purported distinction between bad character and dangerousness does find support in prior South Carolina decisions, *see, e.g., State v. Young*, 459 S.E.2d 84, 87 n.4 (S.C. 1994), but this Court's cases are to the contrary. *California v. Ramos*, 463 U.S. 992, 1006 n.20 (1983) ("[A] . . . jury's evaluation of the defendant's future dangerousness may rest on lay testimony about the defendant's character and background and the inferences to be drawn therefrom"); *Ramdass v. Angelone*, 530 U.S. 156, 171 (2000) ("To demonstrate Ramdass' evil character and his propensity to commit violent acts in the future, the prosecutor used Ramdass' prior criminal conduct. . . . "). In this context, moreover, the distinction is meaningless. When the prosecution seeks to prove that a teenaged murderer has exhibited unpredictable and extreme violence, lacks remorse, and behaves violently in

jail, it is trying to prove that his character is one of persistent and violent criminality – which is to say, that he is dangerous and will remain so. The defendant's right to inform the jury that he will never be released from prison does not depend on whether this portrayal is labeled "dangerousness" or "character," because in this setting the two terms mean the same thing. *See Skipper v. South Carolina*, 476 U.S. 1, 7 (1986) (rejecting South Carolina's effort to distinguish between capital defendant's "past good conduct to prove good character and use of the same evidence to establish future good conduct in prison.").

In states where dangerousness is a formal statutory factor, prosecutors generally rely on precisely the type of evidence that the state introduced here to meet their burden of proving dangerousness. Courts in both Virginia and Texas – states where future dangerousness is a formal statutory aggravating factor – have held that the facts of the capital murder *alone* may support a finding of dangerousness beyond a reasonable doubt. *See, e.g., Pope v. Commonwealth*, 360 S.E.2d 352, 361 (Va. 1987); *Bell v. State*, 938 S.W.2d 35, 42 (Tex. Crim. App. 1996). In addition, given that "[c]onsideration of a defendant's past conduct as indicative of his probable future behavior is an inevitable and not undesirable element of criminal sentencing," *Skipper v. South Carolina*, 476 U.S. 1, 5 (1986), prosecutors usually present any available evidence of prior convictions and other violent or anti-social conduct to prove future dangerousness. *See e.g., Johnson v. Texas*, 509 U.S. 350, 355 (1993) (state proved future dangerousness by introducing 19-year-old offender's prior crimes); *State v. Tucker*, 478 S.E.2d 260, 269-70 (S.C. 1996) (recognizing that

evidence of past criminal behavior is highly relevant to both character and future dangerousness of convicted murderer). While the weight to be accorded such evidence in establishing future dangerousness for any given offender may be open to dispute, this much is not: when the prosecution proves a grisly, premeditated murder of a defendant's pregnant co-worker, and then presents "character" evidence at sentencing that the defendant bragged about his offense, defied jail authorities, attempted to escape, and plotted a hostage-taking at knife-point, any rational sentencer will likely consider the possibility of violent future behavior before deciding to spare the defendant's life. The state having presented the evidence that triggers this concern, the defendant has a due process right to allay it if he can, and *Simmons* clearly entitles him to attempt to do that by informing the jury that he would never be eligible for parole.

D. South Carolina's resistance to *Simmons* will persist until this Court makes unmistakably clear how far *Simmons* extends.

This is not the first time that the South Carolina Supreme Court has avoided applying *Simmons* by refusing to acknowledge the state's injection of a capital defendant's future dangerousness as a sentencing issue. *State v. Southerland*, 447 S.E.2d 862 (S.C. 1994); *sentence vacated on other grounds*, 524 S.E.2d 833 (S.C. 1999). More importantly, it may not be the last. *Shafer v. South Carolina*, 121 S. Ct. 1263 (2001), is currently pending before the South Carolina Supreme Court on remand from this Court for a determination of whether the state's evidence and argument placed future dangerousness "at issue," and *State v.*

Haselden, No. 99-GS-32-3064 (appeal pending S.C. S. Ct.), a case involving the same prosecutor and trial judge as does this one, will soon present the question yet again. Of course, each of these cases involves its own facts, and although the sentencing juries in all three likely considered the issue of the defendants' future dangerousness, the state has already begun to urge that the facts of *Shafer* and *Haselden* are less egregious than – and thus distinguishable from – those of this case. Indeed, in successfully opposing a *Simmons*-based motion for a new sentencing trial in *Haselden, supra*, prosecutor Myers recently cited his own jury argument and the South Carolina Supreme Court's opinion in this case to show that his *Haselden* argument did not mandate a *Simmons* instruction:

> Now, [defense counsel] always try to say I argue future dangerousness and the [state] supreme court keeps telling them, No, he doesn't. [The court] said I didn't argue future dangerousness in *State versus Southerland*, [447 S.E.2d 862 (S.C. 1994)]. They said I didn't argue future dangerousness in *State versus Luke Williams*, [468 S.E.2d 626 (S.C. 1996)]. They said I didn't argue future dangerousness in *State versus William Arthur Kelly*, 540 S.E.2d 855 . . .
>
> In *Kelly*, I even talked about Mr. Kelly attempting to escape from the Lexington County jail. I put in evidence Mr. Kelly was going to hold a female correctional officer to escape and he was making a shank. I put in evidence that he had a shank in his cell. . . . And I also talked about the escape and I argued about the escape. I also put in evidence that Mr. Kelly, he had murdered a woman down at the Kentucky Fried

> Chicken place, a pregnant woman, and at the jail he wanted to be called K.F.C. and that he went around with a styrofoam cup with a chicken with his head cut off with blood coming down it for what he had done to Shirley Shealy in that case.
>
> Oh, they argued that was future dangerousness. The Supreme Court of South Carolina said, No sir, it isn't. Solicitor Myers doesn't put in future dangerousness.
>
> I said – I called him he's worse than a mass murderer, that it's an unpredictable crime and more frightening than a serial killer. I called him a career criminal. But you kind of trust those people like him when he's not a serial killer a little bit more, it makes him more dangerous for this victim, unpredictable for Sherry Shealy. I said, Murderers will be murderers.
>
> Through all that, through all their arguments the South Carolina Supreme Court said, First, we agree with the trial court that the state's evidence did not implicate future dangerousness.

State v. Haselden, supra, Trial Transcript at 2336-38 (April 5, 2001).

This prosecutor may be unusual for the zeal with which he has sought to evade the effect of this Court's decision in *Simmons*, and for the candor with which he recounts his success so far. But Mr. Myers is not alone among South Carolina prosecutors in seeking to take advantage of the state courts' lax enforcement of the *Simmons* rule. As counsel for South Carolina recently

acknowledged before this Court, South Carolina prosecutors make "tactical decision[s]" to avoid arguing about capital defendants' future dangerousness precisely so as to avoid having to inform the jury, under *Simmons*, that the defendant will never be paroled. *Shafer*, *supra*, Tr. of Oral Arg. at 38-39 (Jan. 9, 2001).[8] Given the continuing unwillingness of South Carolina prosecutors and courts to enlighten sentencing juries concerning the actual alternative to the death penalty that South Carolina's legislature has established, only a clear restatement of the *Simmons* rule will obviate the necessity of further case-by-case review by this Court.

Accordingly, petitioner submits that the Court should now hold that future dangerousness is "in issue" within the meaning of *Simmons* when

(a) the prosecution presents evidence from which a jury could find the defendant poses a future danger,

(b) the prosecutor's argument states or implies that the defendant poses a future danger, or

(c) the judge instructs the jury to consider the issue of future dangerousness.

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[8] It is significant that the only two defendants to have received sentencing phase relief from the South Carolina Supreme Court under *Simmons* were both tried prior to June 17, 1994, the date of the *Simmons* decision – and thus before South Carolina prosecutors could tailor their courtroom presentations with a view to evading the holding of that case. *State v. Tucker*, 464 S.E.2d 105 (S.C. 1995) (tried November 29 to December 7, 1993); *State v. Rogers*, 466 S.E.2d 360 (S.C. 1996) (tried February 28 to March 5, 1994).

In jurisdictions like South Carolina, where future dangerousness is not a statutory aggravating circumstance, and where the jury considers all of the evidence relevant to sentencing once death-eligibility is established, S.C. Code § 16-3-20(B) (Supp. 2000), *State v. Shaw*, 255 S.E.2d 799, 808 (S.C. 1979), future dangerousness instructions will not normally be given, and the *Simmons* rule will be triggered, if at all, either by the state's evidence or by argument, or (as here) by both.

This restatement of the *Simmons* rule would work no change in the rule itself. Nothing in *Simmons* limited its reach to cases in which the prosecution made an explicit claim of dangerousness in its sentencing phase jury argument, and *Shafer* has already made clear that future dangerousness may be placed "at issue" by either "the prosecutor's evidentiary submissions *or* closing argument." 121 S. Ct. at 1274-75 (emphasis added). Indeed, in this very case the South Carolina Supreme Court acknowledged that future dangerousness can become an issue by virtue of the state's evidence alone, since the state court's rejection of petitioner's *Simmons* claim rests on its conclusion that dangerousness "was neither a logical inference from the evidence nor was it injected into the case through the state's closing argument." 540 S.E.2d at 857, JA 326. Given this acknowledgment, one would be hard-pressed to think of any workable standard other than evidentiary sufficiency (that is, whether the evidence before the jury suffices to support an inference of future dangerousness) in determining whether *Simmons* applies. Any more demanding standard would fail to protect against the evil with which *Simmons* is concerned – that a jury would sentence a defendant to death out of a

misplaced fear that he would otherwise be paroled, and thereby allowed to resume his violent conduct. *See generally*, William J. Bowers and Benjamin D. Steiner, *Death by Default: an Empirical Demonstration of False and Forced Choices in Capital Sentencing*, 77 Tex. L. Rev. 605 (1999); Theodore Eisenberg, *et al.*, *The Deadly Paradox of Capital Jurors*, 74 S. Cal. L. Rev. 371 (2001).

Virtually alone among the nation's death penalty jurisdictions, *see Shafer, supra*, 121 S. Ct. at 1271 n.4, South Carolina continues to devise new rationales for its unfair and unconstitutional refusal to inform sentencing juries of the alternative to the death penalty that state law provides. By refusing to acknowledge the state's obvious injection of the issue of future dangerousness into petitioner's sentencing hearing, the South Carolina Supreme Court has sought, once again, to vitiate the *Simmons* rule. *See Penry v. Johnson*, 121 S. Ct. 1910, 1924 (2001) (indicating that the South Carolina Supreme Court's mischaracterization of the operation of state law had led, in *Shafer*, to an objectively unreasonable limitation on *Simmons*). The Court should not permit such persistent disregard of one of its constitutional precedents.

CONCLUSION

For the foregoing reasons, the judgment of the South Carolina Supreme Court should be reversed to the extent that it leaves petitioner's death sentence undisturbed.

Respectfully submitted,

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CODE OF LAWS OF SOUTH CAROLINA 1976
ANNOTATED TITLE 16. CRIMES AND OFFENSES
CHAPTER 3. OFFENSES AGAINST THE PERSON
ARTICLE 1. HOMICIDE

§ 16-3-20. Punishment for murder: separate sentencing proceeding to determine whether sentence should be death or life imprisonment.

(A) A person who is convicted of or pleads guilty to murder must be punished by death, by imprisonment for life, or by a mandatory minimum term of imprisonment for thirty years. If the State seeks the death penalty and a statutory aggravating circumstance is found beyond a reasonable doubt pursuant to subsections (B) and (C), and a recommendation of death is not made, the ~~t~~rial judge must impose a sentence of life imprisonment. For purposes of this section, "life imprisonment" means until death of the offender. No person sentenced to life imprisonment pursuant to this section is eligible for parole, community supervision, or any early release program, nor is the person eligible to receive any work credits, education credits, good conduct credits, or any other credits that would reduce the mandatory life imprisonment required by this section. No person sentenced to a mandatory minimum term of imprisonment for thirty years pursuant to this section is eligible for parole or any early release program, nor is the person eligible to receive any work credits, education credits, good conduct credits, or any other credits that would reduce the mandatory minimum term of imprisonment for thirty years required by this section. Under no circumstances may a female who is pregnant be executed so

long as she is pregnant or for a period of at least nine months after she is no longer pregnant. When the Governor commutes a sentence of death to life imprisonment under the provisions of Section 14 of Article IV of the Constitution of South Carolina, 1895, the commutee is not eligible for parole, community supervision, or any early release program, nor is the person eligible to receive any work credits, good conduct credits, education credits, or any other credits that would reduce the mandatory imprisonment required by this subsection.

(B) When the State seeks the death penalty, upon conviction or adjudication of guilt of a defendant of murder, the court shall conduct a separate sentencing proceeding. In the proceeding, if a statutory aggravating circumstance is found, the defendant must be sentenced to either death or life imprisonment. If no statutory aggravating circumstance is found, the defendant must be sentenced to either life imprisonment or a mandatory minimum term of imprisonment for thirty years. The proceeding must be conducted by the trial judge before the trial jury as soon as practicable after the lapse of twenty-four hours unless waived by the defendant. If trial by jury has been waived by the defendant and the State, or if the defendant pleaded guilty, the sentencing proceeding must be conducted before the judge. In the sentencing proceeding, the jury or judge shall hear additional evidence in extenuation, mitigation, or aggravation of the punishment. Only such evidence in aggravation as the State has informed the defendant in writing before the trial is admissible. This section must not be construed to authorize the introduction of any evidence secured in violation of the Constitution of the United States or the

State of South Carolina or the applicable laws of either. The State, the defendant, and his counsel are permitted to present arguments for or against the sentence to be imposed. The defendant and his counsel shall have the closing argument regarding the sentence to be imposed.

(C) The judge shall consider, or he shall include in his instructions to the jury for it to consider, mitigating circumstances otherwise authorized or allowed by law and the following statutory aggravating and mitigating circumstances which may be supported by the evidence:

(a) Statutory aggravating circumstances:

(1) The murder was committed while in the commission of the following crimes or acts:

(a) criminal sexual conduct in any degree;

(b) kidnapping;

(c) burglary in any degree;

(d) robbery while armed with a deadly weapon;

(e) larceny with use of a deadly weapon;

(f) killing by poison;

(g) drug trafficking as defined in Section 44-53-370(e), § 44-53-375(B), § 44-53-440, or § 44-53-445;

(h) physical torture; or

(i) dismemberment of a person.

(2) The murder was committed by a person with a prior conviction for murder.

(3) The offender by his act of murder knowingly created a great risk of death to more than one person in a public place by means of a weapon or device which normally would be hazardous to the lives of more than one person.

(4) The offender committed the murder for himself or another for the purpose of receiving money or a thing of monetary value.

(5) The murder of a judicial officer, former judicial officer, solicitor, former solicitor, or other officer of the court during or because of the exercise of his official duty.

(6) The offender caused or directed another to commit murder or committed murder as an agent or employee of another person.

(7) The murder of a federal, state, or local law enforcement officer, peace officer or former peace officer, corrections employee or former corrections employee, or fireman or former fireman during or because of the performance of his official duties.

(8) The murder of a family member of an official listed in subitems (5) and (7) above with the intent to impede or retaliate against the official. "Family member" means a spouse, parent, brother, sister, child, or person to whom the official stands in the place of a parent or a person living in the official's household and related to him by blood or marriage.

(9) Two or more persons were murdered by the defendant by one act or pursuant to one scheme or course of conduct.

(10) The murder of a child eleven years of age or under.

(11) The murder of a witness or potential witness committed at any time during the criminal process for the purpose of impeding or deterring prosecution of any crime.

(b) Mitigating circumstances:

(1) The defendant has no significant history of prior criminal conviction involving the use of violence against another person.

(2) The murder was committed while the defendant was under the influence of mental or emotional disturbance.

(3) The victim was a participant in the defendant's conduct or consented to the act.

(4) The defendant was an accomplice in the murder committed by another person and his participation was relatively minor.

(5) The defendant acted under duress or under the domination of another person.

(6) The capacity of the defendant to appreciate the criminality of his conduct or to conform his conduct to the requirements of law was substantially impaired.

(7) The age or mentality of the defendant at the time of the crime.

(8) The defendant was provoked by the victim into committing the murder.

(9) The defendant was below the age of eighteen at the time of the crime.

(10) The defendant had mental retardation at the time of the crime. "Mental retardation" means significantly subaverage general intellectual functioning existing concurrently with deficits in adaptive behavior and manifested during the developmental period.

The statutory instructions as to statutory aggravating and mitigating circumstances must be given in charge and in writing to the jury for its deliberation. The jury, if its verdict is a recommendation of death, shall designate in writing, and signed by all members of the jury, the statutory aggravating circumstance or circumstances which it found beyond a reasonable doubt. The jury, if it does not recommend death, after finding a statutory aggravating circumstance or circumstances beyond a reasonable doubt, shall designate in writing, and signed by all members of the jury, the statutory aggravating circumstance or circumstances it found beyond a reasonable doubt. In nonjury cases the judge shall make the designation of the statutory aggravating circumstance or circumstances. Unless at least one of the statutory aggravating circumstances enumerated in this section is found, the death penalty must not be imposed.

Where a statutory aggravating circumstance is found and a recommendation of death is made, the trial judge shall sentence the defendant to death. The trial judge, before imposing the death penalty, shall find as an affirmative fact that the death penalty was warranted under the evidence of the case and was not a result of prejudice, passion, or any other arbitrary factor. Where a statutory

aggravating circumstance is found and a sentence of death is not recommended by the jury, the trial judge shall sentence the defendant to life imprisonment as provided in subsection (A). Before dismissing the jury, the trial judge shall question the jury as to whether or not it found a statutory aggravating circumstance or circumstances beyond a reasonable doubt. If the jury does not unanimously find any statutory aggravating circumstances or circumstances beyond a reasonable doubt, it shall not make a sentencing recommendation. Where a statutory aggravating circumstance is not found, the trial judge shall sentence the defendant to either life imprisonment or a mandatory minimum term of imprisonment for thirty years. No person sentenced to life imprisonment or a mandatory minimum term of imprisonment for thirty years under this section is eligible for parole or to receive any work credits, good conduct credits, education credits, or any other credits that would reduce the sentence required by this section. If the jury has found a statutory aggravating circumstance or circumstances beyond a reasonable doubt, the jury shall designate this finding, in writing, signed by all the members of the jury. The jury shall not recommend the death penalty if the vote for such penalty is not unanimous as provided. If members of the jury after a reasonable deliberation cannot agree on a recommendation as to whether or not the death sentence should be imposed on a defendant found guilty of murder, the trial judge shall dismiss such jury and shall sentence the defendant to life imprisonment as provided in subsection (A).

(D) Notwithstanding the provisions of Section 14-7-1020, in cases involving capital punishment a person

called as a juror must be examined by the attorney for the defense.

(E) In a criminal action in which a defendant is charged with a crime which may be punishable by death, a person may not be disqualified, excused, or excluded from service as a juror by reason of his beliefs or attitudes against capital punishment unless such beliefs or attitudes would render him unable to return a verdict according to law.